

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0000712

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: EMELY SALDANA

vs.

DEFENDANT: THE BUNGALOW
KITCHEN SF, LLC ET AL

NATURE OF PROCEEDINGS: 1) MOTION – FAILURE TO FILE FINAL APPROVAL OF
CLASS ACTION AND PAGA SETTLEMENT
2) MOTION – OTHER: FINAL APPROVAL OF CLASS ACTION AND PAGA
SETTLEMENT

RULING

The class action and PAGA settlement is approved. The court will sign the order provided.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO. CV0001240

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PETITIONER: SMITH & NEPHEW, INC.

vs.

RESPONDENT: MARIN ADVANCED
WOUND CENTER PC

NATURE OF PROCEEDINGS: MOTION – LEAVE – AMEND COMPLAINT

RULING

Plaintiff's Motion to Amend the Complaint was filed on June 29, 2026. Defendant filed a timely opposition on August 17, 2026.

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be appropriately numbered, here as the First Amendment Complaint. Rule of Court, Rule 3.1324(a)(1). The moving party must state the allegations to be added, and identify by page, paragraph and line number, and where additional allegations are located. Rule 3.1324(a)(3). The party must file a declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amendment were discovered, and the reasons why the requested amendment was not made earlier. Rule 3.1324(b).

Plaintiff has not filed a proposed amended complaint, nor was the motion supported by a declaration, as required. The motion to amend is DENIED without prejudice. Defendant should note that if the Plaintiff complies with the rules of court, the request will likely be GRANTED, given the scope of the proposed amendment is limited. The parties should meet and confer prior to any future refiling in an effort to achieve a stipulation.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28//26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0001441

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: EDNA MARCIA RIBEIRO vs. DEFENDANT: ALEXANDRE P. FRADE, ET AL	
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NATURE OF PROCEEDINGS: MOTION – NEW TRIAL

RULING

Defendant Alexandre P. Frade, D.D.S. ("Defendant") filed a Motion for a New Trial on July 20, 2026. pursuant to California Code of Civil Procedure ("CCP") §§ 657.

Defendant is a dentist. Plaintiff Edna Marcia Ribeiro ("Plaintiff") was his patient as defined by Business and Professions Code, § 1684.5(b). Plaintiff filed an opposition brief on July 27, 2026. Defendant filed a reply brief on July 30.

Given the facts presented to the jury during the trial regarding the doctor's unprofessional conduct with his patient, it is not surprising the jury found for the Plaintiff, awarding her \$400,000.00.

Wrenching testimony described a dentist who on the very day he extracted a tooth from his patient, whom he knew was a massage therapist, scheduled her as his last patient and emptied the office of employees so the two parties were alone. The oral surgery occurred during the evening of September 1, 2022. The dentist coordinated this so, after he performed oral surgery on her, she could give him a massage. The Defendant negotiated massages in exchange for payment for Plaintiffs oral surgery. Plaintiff credibly testified that after the surgery, the dentist sexually assaulted her by groping her in his reception area. Testimony also supports that he demanded the massage *immediately* after he performed the oral surgery, most likely while her mouth was bloody and she was numbed and medicated. Uncontroverted testimony told how the patient even had to negotiate with the dentist down from giving him a full body massage on a massage table that evening, to a head and neck massage. The facts regarding the dentist's untoward behavior were hard for the jury to digest.

Plaintiff testified that she maintained a relationship with the Defendant after the surgery after September 1, 2022, to stay in his good-graces with the hope of resolving the continuing pain associated with the botched tooth removal. Testimony at trial is uncontroverted in that the tooth extraction was botched, with part of her tooth remaining in the oral cavity. The jury reviewed extensive texts and voicemail records in which the Patient expressed concerns about continued pain in her mouth because of the Defendant's tooth extraction. The jury heard testimony that the Plaintiff believed the Defendant would continue to help her repair the painful damage he caused to her mouth.

It is undisputed that the Defendant told the Plaintiff that he had cancer, when he did not, in what the Plaintiff explained to the jury was a bizarre attempt for him to garner the Plaintiff's sympathy.

Defendant relented in the end, by agreeing to examine the Plaintiff nine (9) months later at his offices in June 2023. Logically, the doctor/patient relationship continued from September 2022, with the parties continuing to discuss the tooth issue in texts and voicemail messages, and with the dentist agreeing to once again examine his patient in June 2023. On the day of the examination and while at the Defendant's office, the Jury heard testimony that the Defendant changed his mind and refused to examine her. Plaintiff also testified that she had misgivings about this dentist performing any procedures on her mouth.

Given the facts presented to the jury, it is no wonder that they found in favor of the Plaintiff.

Jury Verdict History

The jury trial on this matter commenced on May 26, 2026, and ended on June 23, 2026. The jury was impaneled for approximately 16 days. The jury entered a verdict in favor of Plaintiff on June 23, 2026, that the dentist made unwelcomed sexual advances on his patient while she was unable to easily end the relationship, causing her emotional distress. The jury also found that the dentist made sexual advances on the Plaintiff while they were engaged in a dentist/patient relationship. The jury also found that the dentist took advantage of the Plaintiff because she was a woman. Damages were awarded in her favor for negligence, sexual harassment, and violations of the Unruh Civil Rights Act awarding her \$100,000 for past non-economic damages, \$150,000 for future non-economic damages, and \$150,000 for civil rights violations.

The jury awarded \$400,000 in total damages.

Motion for New Trial - Standard

CCP §657 sets out the grounds for a new trial: 1) Irregularity in the proceeding; 2) jury misconduct; **3) accident or surprise**; 4) newly discovered evidence which Plaintiffs could not, with reasonable diligence, have discovered and produced at trial; **5) excessive or inadequate damages**; **6) insufficiency of the evidence**; **7) an error in law which occurred at trial, to**

which the party seeking a new trial objected. Plaintiff seeks a new trial based on grounds 3, 5, 6 and 7.

An affidavit to Support a CCP §657 claim is mandatory.

The court may grant a new trial based on accident or surprise that the moving party could not have guarded against by exercising ordinary prudence. CCP §657(3). “Accident” or “surprise” as a ground for a new trial means a condition or situation in which a party to an action is placed unexpectedly to the party's detriment. (*McCoy v Pacific Maritime Ass’n*. (2013) 216 Cal.App.4th 283, 305.)

CCP §657 provides:

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that *the court or jury clearly should have reached a different verdict or decision*. (Emphasis, the court.)

If one moves for new trial on CCP §657 on ground #3 for accident or surprise or 4, the party must support the claim with affidavits; otherwise one must move upon “on the minutes of the court.” CCP §658.

“Motions seeking a new trial on the first four grounds “must be made upon affidavits” (§ 658).” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.)

Defendant did not provide a declaration substantiating his claim that Dr. Pappas’ testimony regarding the duration of the dentist-patient relationship constituted a surprise which ordinary prudence could not have guarded against. Aside from the arguments in the moving papers. Defendant does not specifically cite the record to identify where Dr. Pappas stated that the dental relationship is a “mandatory ‘two year duration’”, as alleged in the Motion at Page 1:26.

Defendant’s failure to submit a supporting declaration supports denial of the motion for new trial on the basis of surprise testimony.

Surprise under § 657(3) arises when an adverse witness testifies to material facts or positions completely at variance with prior disclosures, effectively blindsiding the opposing party and depriving them of a fair opportunity to prepare a defense. In *Whitfield v. Debrincat*, the court affirmed a new trial where the defendant's own witness had given testimony about a fact that was wholly contrary to what the witness had indicated prior to trial, finding that neither ordinary nor extraordinary prudence could have guarded against the about faced change of position by the witness without warning. (*Whitfield v. Debrincat*, (1937) 18 Cal.App.2d 730.) Similarly, in *Wade v. De Bernardi*, the trial court granted a new trial where an expert witness indicated moments before testifying to certain facts, but then completely reversing his opinion on the stand. (*Wade v. De Bernardi*, (1970) 4 Cal.App.3d 967.) The new facts presented in *Whitfield* and *Wade* were surprising facts that put the trial lawyers on their heels. A statement by a Plaintiff expert dentist that the dentist-patient relationship lasts two years is not a blindsiding

surprise the would cause the jury to reach a different verdict. Particularly, when the jury received a jury instruction defining the scope of the dentist/patient relationship. *Infra*.

Defendant Plaintiff's dental expert, John Pappas, DDS, MD, JD, testified that a dentist-patient relationship under the California Dental Practice Act exist for a two year duration constituted a fatal surprise. Defendant appears to argue that the doctor patient relationship expired after the first medical procedure on September 1, 2022, claiming that the relationship after was "a purely personal consensual relationship." (Motion at 2:10-11.) The volume of evidence before the jury does not support that assertion. There were numerous ongoing text and voicemail messages between the parties after the oral surgery which addressed the Plaintiff's dental distress. At one point in December 2022, in an apparent attempt to derail the Plaintiff from seeking additional dental or legal advice, and an obvious effort to garner her sympathy, the Dentist told Plaintiff that he had cancer. On cross examination, Defendant showed no remorse for attempting to elicit her sympathy by deceiving her about the cancer diagnosis.

There was a follow-up dental appointment in June 2023 to the September 1, 2022, tooth extraction at the dentist's office. It would have been helpful for the Defendant to cite the testimony in transcript to support the argument of "surprise". Dr. Pappas testified Plaintiff remained the Defendant's patient until the post operative appointment on June 28, 2023. "Ms. Ribeiro was a patient of record of the defendant from the time he treated her until the time of post-op appointments. ... In the interim between 9-1-22, Dr. Frade maintained some sort of connection on phone, and giving the patient advice and recommendations about treatment. So she is a patient of record of Dr. Frade's." (Day 6, pg. 87:2-88:6.).

Dr. Pappas testified that his expert opinion was that a patient of record remains a patient once he as seen and examines a patient and takes her dental history then the person becomes a patient of record by law in the State of California. (Day 6, pg. 86:15-19.) Bus. & Prof. Code, § 1684.5(b).

Defendant wants it both ways. Defendant complaints that Dr. Pappas, as plaintiff's expert may not testify to legal conclusions or interpret statutory legal frameworks. Yet, on June 11, 2026, in response to that testimony, defense expert Dr. Finzen, DDS, testified that he reviewed the Civil Code and found that the Defendant's conduct did not fall below the standard of care between a doctor and his patient. Both experts are not lawyers, yet they espoused legal opinions which they linked to legal citations. Here, the sexual relationship between the dentist and the Plaintiff began on the date of the tooth extraction, when he demanded a massage after, and sexually assaulted her by groping her body in his office. Defendant does not protest when his defense expert, a dentist, uses the authority of the Civil Code to argue that that conduct did not fall below the standard of care; yet he objects to Dr. Pappas making a vague reference to the Business and Professions code while giving an expert opinion.

Moreover, the argument of surprise (§657 sub. C) and/or error of law (§657 subs. 6, 7) is unsupported by the record because Defendant was on notice that the duration of the dentist-patient relationship was a point of contention.

First, Defendant asserts that Dr. Pappas was not disclosed to testify regarding the duration of the doctor patient relationship, and the failure to disclose "forced" the Defendant to elicit testimony from Defendant's own experts. Yet, Defendant was advised that Dr. Pappas intended to testify

at his deposition that Plaintiff was scheduled for a check up visit after the September 1, 2022, dental extraction.

Second, Defendant's expert Dr. Finzen's deposition testimony before trial was that the doctor patient relationship ended after the September 1 tooth extraction. This discloser put the parties on notice that the scope of the doctor patient relationship was at issue. (Plaintiff's Opposition, citing Finzen Depo. 9:17-20.) There was no surprise here. Defense aptly introduced expert testimony from both Dr. Finzen and Dr. Crane who were both well versed and comfortable addressing when a dentist/patient relationship begins and ends. The plaintiff has the prerogative to address points of contention during their presentation of the case.

Lastly, Defendant changes his argument in the Reply brief, arguing that the Defendant does not seek a new trial under the theory of procedural "surprise". Reply at 1:26-28. This statement is inconsistent with the first two pages of Plaintiff's motion. Motion 1:16-2:28.

Jury Award was Reasonable.

A judge may grant a new trial based on excessive or inadequate damages under CCP §657 sub. 5, only if, after weighing the evidence, the judge is convinced from the entire record the jury clearly should have reached a different verdict or decision. (CCP §657. *Neal v Farmers Insu.* (1978) 21 Cal. 3d 940, 930. A judge Ruling on a motion for new trial on the ground of excessive or inadequate damages must weigh the evidence and act as an independent trier of fact. (*Ryan v Crown Castle*, (2016) 6 Cal.App.5th 775, 784.) The judge may disbelieve witnesses and draw reasonable inferences contrary to those drawn by the jury rejecting any testimony that the judge concludes is false from the evidence. (*Baker v American Horticultre Supply* (2010) 186 Cal.App.4th 1059, 1067.)

Defendant's argument is far-reaching. There was ample evidence to support a six figure jury damages award. Testimony described a dentist who, on the same day he extracted a tooth from a patient, cleared his office of employees in the evening so he could receive a full body massage from the very same patient he performed oral surgery on. Evidence supports Plaintiff's allegations that he sexually assaulted her. He even demanded that his patient, after he removed her tooth and while she was numb and medicated, give him a massage. Likely with post operative blood in her mouth, she had to negotiate with him to lessen the scope of the massage from a full body to a head and neck massage, which she gave. Credible testimony indicates that the dentist altered his medical records in an effort to show he terminated the dentist patient relationship. Further, it is undisputed that he told her he had cancer, when he did not. The text message chain supports his efforts to exploit his patient for massages, all the while, she was in pain and had to seek dental attention from other costly dental providers.

Dr. Nathalia Guimaraes, a Brazilian medical professional, was qualified to testify as an expert regarding the Plaintiff's post operative anxiety and mental health. This court has no basis to join the Defendant in his attack on the doctor's professionalism and qualifications. Dr. Guimaraes testified as a qualified expert regarding the severe emotional distress Plaintiff suffered because of Defendant's sexual mistreatment. She discussed Plaintiff's severe anxiety, insomnia and the shame she suffered. This testimony supports the jury award for emotion distress damages.

Defendant points to no examples in the trial record to support his claim that “a rigorous examination of the total record reveals a total failure of proof regarding medical causation and the existence of any documented related emotional injury.” Motion at 3:16-18. There are no facts which would support overturning the jury’s determination under CCP 657 sub. 5, that the dentist was negligent, he sexually harassed her and violated her civil rights because she is a woman.

Jury Instruction Regarding the Law were Proper.

A judge may grant a new trial based on misstatements of the law under CCP §657 sub. 7.

Defendant’s argument that Plaintiff’s expert Dr. Pappas’ statement that the relationship lasted for 2 years was a misstatement of fact and law is addressed, *supra*.

Defendant’s assertion that “[t]he undisputed evidence at trial established that Defendant Dr. Frade treated Plaintiff Edna Ribeiro for a single, problem-focused visit on September 1, 2022. No follow-up appointments were scheduled or requested,” is patently false and a gross misstatement of the record. The evidence shows the tooth extraction was an ongoing topic of conversation between the Plaintiff and Defendant, even during their “relationship,” which ended several months after the oral surgery. There are numerous text messages and voice messages shared between the parties in which Plaintiff discussed her dental situation and the pain she suffered. These were not just messages relayed between two adults in a “relationship”, these were messages sent by a patient whose tooth removal was botched by her dentist when he failed to extract the entire tooth.

Further, the Defendant agreed to meet with the Plaintiff for an appointment at his dental office space on June 28, 2023, to examine and repair the same area of the Plaintiff’s mouth in which he performed oral surgery on September 1, 2022. Dr. Pappas testified that Plaintiff remained his patient until his post-operative appointment on June 28, 2023. (Day 6, pg. 87:2-88:6.) This was a follow-up appointment and the dentist agreed to reexamine the Plaintiff to repair the damage he caused.

Jury instruction BAJI 6.05 was read to the jury and defines the scope of the dentist-patient relationship. The jury heard the following instruction:

Once a dentist has undertaken to treat a patient, the employment and duty as a dentist to the patient continues until ended by consent or request of the patient or the dentist withdraws from the case after giving the patient notice and a reasonable time to employ another dentist or the condition of the patient is such that the dentist’s services are no longer reasonably required.

A dentist may limit his obligation to a patient by undertaking to treat the patient only for a certain ailment or injury. If the employment is so limited, the physician is not required to treat the patient for any other ailment or injury.

Defendant attempted to introduce a medical record in which the Defendant notes for his file that he advised the Plaintiff that the dentist-patient relationship was complete. The Plaintiff presented credible testimony that the purported self-serving medical record was doctored. The jury weighed the evidence, and found the doctor-patient relationship continued beyond September 1, 2022.

The court is troubled by Defendant's assertion in its reply the "the Court allowed Dr. Pappas to redefine BAJI 6.05"; that did not happen.¹ To address the issue once raised by the Defendant, the court made a clarifying instruction to the jury after Defendant's motion to strike was DENIED on June 8, 2026, that the jurors were to follow the law regarding the scope of the relationship when they were presented with jury instructions. Also, the jurors were instructed to follow BAJI 6.05, and that "[y]ou must follow the law exactly as I give it to you, even if you disagree with it. If the attorneys [have said/say] anything different about what the law means, you must follow what I say." CACI 5000.

On this record, sufficient evidence was presented to justify the jury verdict. A CCP §657 sub. 6 finding is unsupported by the record. Moreover, there was no error in law because the jury was correctly instructed regarding the duration of the dentist-patient relationship. CCP §657 sub. 7.

Doctors Living Outside of the United States May Testify as Experts in California

Defendant's Motions in Limine No. 8 and 14, sought to preclude Plaintiff from calling doctors licensed in Brazil from testifying in a California courtroom. The motions also sought to preclude reference of medical and dental records from foreign providers. Defendant challenges the qualifications and testimony of Dentist Rodrigo Costa, who practices dentistry in Brazil, and Dr. Nathalia Guimaraes.

California Evidence Code § 720(a) provides that a person is qualified to testify as an expert if s/he has special knowledge, skill, experience, training, or education sufficient to qualify him/her as an expert on the subject to which his testimony relates. (Cal. Evid. Code §720.) The statute does not impose any requirement that the expert be licensed in California, in the United States, or even reside domestically.

In *Avivi v. Centro Medico Urgente Med. Ctr.*, the court found that an orthopedist who lived and practiced in Israel was sufficiently qualified to provide an opinion about the standard of care in California for the treatment of an arm fracture, despite never being board certified by any United States medical board nor providing any treatment to patients in the United States. (*Avivi v. Centro Medico Urgente Medical Center*, (2008) 159 Cal.App.4th 463, 468-470.) The court reasoned that the appropriate test for expert qualification in ordinary medical malpractice actions is whether the expert is familiar with circumstances like those of the respondents, and that familiarity with the standard of care in the particular community where the alleged malpractice

¹ The Defendant also references "Fabricated Legal Opinions" contained in the testimony of Plaintiff's expert Dr. Pappas. However, only **one** issue is identified in the papers. Motion at 6:8.

occurred is generally not requisite. (Id.) The court may also consider the use of modern technology when considering to allow a foreign doctor to testify. (Id.)

The medical professionals living in Brazil were properly sworn before they were allowed to provide testimony. An out of state witness testifying remotely is subject to a perjury charge under California law. Perjury is defined in Pen. Code, § 118 as knowingly providing false testimony under oath. Pen. Code, § 118 further provides: “This subdivision is applicable whether the statement, or the testimony, declaration, deposition, or certification is made or subscribed **within or without the State of California.**” Pen. Code, § 27(b) provides: “Perjury, in violation of Section 118, is punishable also when committed outside of California to the extent provided in Section 118.” (Emphasis added). The California Supreme Court confirmed that the Legislature specifically sought to enhance the trustworthiness of out-of-state declarations used in California proceedings by maximizing the declarant's specific understanding that his false promises to tell the truth carried the potential for criminal prosecution in California. (See, *Kulshrestha v. First Union Commercial Corp.*, (2004) 33 Cal.4th 601, 611, requiring a declarant to sign under penalty of perjury under the laws of the State of California, CCP §21015.5).

This argument by the Defendant is troubling and not in any way supported by the caselaw cited. As a practical matter, witnesses are sworn and provide testimony from outside state lines every day.

Finally, the court recognizes that there are talented medical professionals who reside all over the planet, including in Brazil. Dentist Rodrigo Costa testified regarding his education and qualifications, which were outstanding. The court has no reason to question if he is any less skilled than a dentist licensed in California.

The court found that the evidence he presented and documents he used to support his testimony were credible and allowed those documents to be admitted after the proper foundation was established. There was no legal error to support a CCP §657 sub. 7 finding by the court allowing persons living outside of the State of California, or the United States to testify as an expert in a California courtroom.

Negligence *Per Se*, B&P §726.

The court has addressed the ample evidence was presented before the jury to address Defendant's argument that the dentist-patient relationship between the Defendant and his patient extended well beyond September 1, 2022. Defendant's continued argument that the clinical relationship terminated completely following a single procedure is not true just because the Defendant says it is true. The court did not ‘misdirect’ the jury as accused by the Defendant. (Motion 11:10-16.) The jury was provided with the appropriate jury instructions. *Supra*.

Business and Professions Code, § 726 protects vulnerable patients like Plaintiff from the emotional harm that would likely to result from sexual exploitation by their dentist or doctor. “We believe this result comports with the Legislature's intent to protect vulnerable patients from overreaching by their physicians.” (*Roy v. Superior Court* (2011) 198 Cal.App.4th 1337, 1353.) “Patients' vulnerability compounded with their obvious dependence on the physician to ‘cure

their ills’ places the physician in a position of dominance. It is this position of dominance, or relative disparity of power in the relationship, which has led the American Medical Association ... to conclude that having sexual relations with a current patient is unethical.” *Id.* This statute was enacted by Legislature to establish duties and standards of care to protect vulnerable patients, like the Plaintiff, from sexual predation by their dentist, which the jury concluded happened in this case.

Like B&P §726, which sets a standard of care, “...the common law doctrine of negligence *per se*, B&P § 729 may be used to establish duties and standards of care in a negligence action.” (*Applied Materials v. Workers’ Comp. Appeals Bd.* (2021) 64 Cal.App.5th 1042, 1076.) In that case, the court held that Bus. & Prof. Code, § 729, would support a negligence *per se* instruction in a case involving emotional distress damages resulting from a physician’s sexual relations with a patient. The facts in that case are directly applicable to this case. In *Applied*, a worker claimed that she was sexually exploited by the physician primarily responsible for the treatment of her industrial injuries. She claimed that he touched her inappropriately on multiple occasions at his clinic and had sexual intercourse with her five times in her home. As a result of the doctor’s alleged misconduct, the worker claimed that she suffered a further injury to her psyche and was diagnosed with posttraumatic stress disorder (PTSD). The worker claimed her PTSD was industrial as a compensable consequence of the medical treatment her employer provided for her injuries. *Id.* at 1051.

Similarly in this case, the Plaintiff complained she was groped and made to give the Defendant a “massage” on the same evening her tooth was extracted, at his empty dental office. He demanded additional “massages” for compensation for the oral surgery after the operation, with several visits at her home where he collected on his promised full body massages, which led to further intimacy. He ignored her texted concerns and conversations about the pain she endured because of his botched tooth removal. The case law provides that the Defendant owed her a duty of care, which he ignored. The jury appropriately found she suffered emotional express damages due to the dentist’s conduct.

The court’s instruction regarding B&P§726 was properly given to the jury who were also instructed on the law regarding the duration of the dentist-patient relationship with jury instruction BAJI 6.05.

On this record, sufficient evidence was presented to justify the jury verdict. There is no support for a new trial pursuant to CCP §657 sub. 6. Moreover, there was no error in law because the jury was correctly provided with the negligence *per se* jury instruction. CCP §657 sub. 7.

Defendant was Negligent for Making Sexual Advances on His Patient.

Defendant cites *Atienza v. Taub* to argue that “sexual advances” are intentional actions. (*Atienza v. Taub* (1987) 194 Cal.App.3d 388, 393). Unfortunately, Defendant fails to disclose that *Atienza v. Taub*, was expressly distinguished in *Applied*, with the ruling issued before B&P §729 was amended; that amendment provides that Plaintiff “consent” to a sexual contact by a doctor is not a defense:

...certain health care providers, including physicians, who engage in “sexual intercourse ... or sexual contact with a patient” are guilty of the criminal offense of “[s]exual exploitation,” which is punishable as a misdemeanor or a felony depending on the number of acts or victims. (Bus. & Prof. Code, § 729, subs. (a) & (b).). ***The patient’s consent is not a defense.*** (Id., subd. (b).). (Emphasis, the court.)

The question in Special Verdict Form 1603 to which the Defendant finds objectionable states: “Was Alexandre Frada negligent in making sexual advances on Ms. Ribiero while she was a patient?” The jury, after weighing the evidence found that it was, despite the Defendants aggressive attempts to make the “relationship” seem consensual. Ample evidence supports the verdict.

After weighing the evidence, the jury correctly determined the Defendant caused the Plaintiff emotional distress, and correctly awarded her damages.

Conclusion

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that *the court or jury clearly should have reached a different verdict or decision.* CCP §657. (Emphasis, the court)

There was no miscarriage of justice here. The jury found in favor of the Plaintiff after carefully weighing substantial evidence of the Defendant’s misconduct. The jury was properly instructed regarding the durational scope of the dentist-patient relationship. The jury correctly found that the Defendant’s conduct fell below the standard of care, resulting in his negligent conduct.

The Motion for a New Trial is DENIED.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002987

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: B.B.

vs.

DEFENDANT: COUNTY OF MARIN

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Petitioner B.B. (“Petitioner”) seeks an award of attorney fees and costs following the overturning of an administrative decision by Respondent, County of Marin (“County”). On January 5, 2026, the court, Hon. Andrew Sweet presiding, ordered the County to 1) change the substantiated finding litigated in this matter to a finding of inconclusive, and 2) contact the California Department of Justice and have Petitioner’s name removed from the Child Abuse Central Index (“CACI”).

Petitioner disputed the listing of his name on the CACI via an administrative hearing. Petitioner appealed the administrative decision of the County of Marin (Respondent) via a Petition for Writ of Administrative Mandamus. After hearing on the matter, the court determined the Respondent (County) abused its discretion in this case. The court found that the weight of the evidence before the administrative agency did not support the administrative officer’s finding that it was “more likely than not that child abuse..., as defined in the Penal code Section 11165.6 occurred.” (Penal Code § 11164.12, subd. (b) [defining “substantiated”].)

Attorneys’ Fees

Fees are available to the Petitioner pursuant several statutes.

Fee Standards

Fees are available pursuant to Government Code § 800 for prevailing in an administrative action where there is a finding of arbitrary or capricious action or conduct of a public entity or its officers, and the complainant prevails in the action. “Arbitrary and capricious conduct includes conduct not supported by a fair or substantial reason, a stubborn insistence on following unauthorized conduct, or a bad faith legal dispute. Whether conduct was arbitrary and capricious is a question of fact within the sound discretion of the trial court.” (*Zuehlsdorf v. Simi Valley*